

Tentative Rulings for June 26, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305019	RICARDO VS MILLER ENVIRONMENTAL, INC.	MOTION TO CONTINUE OR DENY DEFENDANTS' MSA UNTIL COMPLETION OF COURT-ORDERED DISCOVERY

Tentative Ruling: The Court GRANTS Plaintiff's Motion to Continue Defendant's Motion for Summary Adjudication and grants Plaintiff leave to file a supplemental opposition. Because the Court is continuing the MSA, trial shall likewise be continued. See schedule, below.

Factual / Procedural Context:

On April 29, 2026, Plaintiff brought the instant motion to continue or deny Defendants' MSA pending completion of Court-ordered and outstanding discovery. Plaintiff seeks to continue the date of the MSA hearing until after Defendants comply with the Court's March 10, 2026, order requiring PMK depositions to proceed and until after Plaintiff obtains outstanding discovery necessary to oppose the MSA.

On May 5, 2026, the Court granted Defendants' motion to hear their MSA, which was set for June 22, 2026, within 30 days before trial, which is currently set for July 17, 2026.

Later, on May 5, 2026, Plaintiff applied ex parte to continue or deny Defendants' MSA pending completion of Court-ordered and outstanding discovery. Plaintiff's ex parte application mirrors the instant noticed motion.

On May 28, 2026, the Court granted Plaintiff's ex parte application and continued the hearing on the MSA to July 1, 2026. The Court further continued all related deadlines to the new hearing date.

Defendants oppose the underlying motion, arguing that it is moot because the Court has already granted Plaintiff's ex parte application based on the same facts and arguments, and continued the motion on their MSA. Defendants further argue that Plaintiff has already taken the deposition of their PMK. Accordingly, Defendants seek sanctions in the amount of \$2,500.00 against Plaintiff.

In reply, Plaintiffs argue that the motion is not moot because the PMK that Defendants produced for deposition currently works for GGG Demolition and has not worked for Miller Environmental since 2017. Accordingly, Plaintiffs contend that Defendants failed to produce an appropriate PMK for Miller Environmental, and as such, discovery remains outstanding. Plaintiffs further argue that Defendants failed to produce thousands of pages of requested documents until the deposition of their PMK on June 10 and 11, 2026. As such, Plaintiffs assert that new facts exist to support their motion to continue Defendants' MSA in this matter.

Analysis

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (C.C.P. § 437c(h).)

Defendants argue that the instant motion to continue or deny Defendants’ MSA is an improper motion for reconsideration under C.C.P. § 1008(a), as the Court granted the requested relief on May 28, 2026, when it granted Plaintiff’s ex parte application for a continuance under C.C.P. § 437c(h) based on the same arguments and facts as the underlying motion. Indeed, both the initial motion and ex parte application were premised upon outstanding discovery, specifically the Court-ordered depositions of Defendants’ PMK, and Miller’s responses to Request for Production, Set Three, and Special Interrogatories, Set Two. (Motion, pp. 7-9; Ex Parte App., pp. 8-10.) However, the evidence shows that the discovery remains outstanding. Specifically, Plaintiff alleges that Miller’s responses to Request for Production, Set Three remain incomplete, and Plaintiff’s motion to compel further responses to Special Interrogatories, Set Two will not be heard until June 25, 2026.

In the Order granting ex parte relief, the Court declined to order Defendants to produce PMK witnesses or provide further verified responses regarding “communications, jobsite information, PPE and safety evidence, project maps, SCAQMD and jobsite materials, and accommodation and interactive-process evidence,” and instead ordered that “Plaintiff shall have a reasonable opportunity to use the completed discovery in preparing opposition papers... The Court reserved all other issues, including sanctions and any discovery enforcement relief, for the noticed discovery motions or further order of the Court.” (Order dated May 27, 2026, ¶ 6-7.)

Here, the evidence shows that Plaintiff did not have a “reasonable opportunity” to use “completed discovery” to prepare his opposition. Plaintiff’s Opposition to the MSA was due on June 11, 2026. However, Plaintiff did not depose Defendants’ PMK until June 10 and 11, 2026. Further, Defendants did not produce further responses and responsive documents to Request for Production, Set Three until June 10 and 11, 2026. In his Reply, Plaintiff contends that new facts essential to justify opposition to Defendants’ MSA exist. Specifically, Plaintiff contends that Defendants’ document production is still missing requested documents regarding internal communications, preservation/search records, employee communications, or other internal electronically stored information (“ESI”), and argues that Defendants’ PMK was unprepared, as he has not been employed by Miller Environmental since 2017, had no knowledge of GGG Demolition’s corporate structure, and did not prepare for the deposition beyond reading the deposition notice. (Reply, p. 8-11.) Accordingly, Plaintiff requests a continuance under C.C.P. § 437c(h) to conduct outstanding discovery concerning Defendants’

knowledge of Valley Fever risks, communications regarding Plaintiff's and Herb Clark's diagnoses, Defendants' relationship and operations, and other responsive documents and ESI.

The Fourth District favors continuing summary judgment motions to resolve matters on their merits, even if a continuance would not serve the competing interest of judicial efficiency. (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."].) In *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, the court of appeal found that the trial court had erred in denying a request to continue a summary judgment motion where the request was made at the hearing and the party had not met the standard for a continuance under C.C.P. § 437c(h). The court analogized the granting of an unopposed summary judgment motion to the equivalent of a terminating sanction and held that the continuance was therefore necessitated unless there had been a history of abuse of pretrial procedures or evidence that the violation was willful. In so doing, the court cited cases that suggested that a summary judgment motion granted "based on a curable procedural default... deprives the opposing party of a decision on the merits." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1213.)

Accordingly, the Court continues the MSA to allow Plaintiff to conduct outstanding discovery to address Defendants' knowledge of Valley Fever risks, communications regarding Plaintiff's and Herb Clark's diagnoses, Defendants' relationship and operations, and other responsive documents and ESI. Plaintiff may file a supplemental opposition to the MSA once such discovery has been completed.

Because the Court is continuing the MSA, the trial shall also be continued as follows:

- Defendant's Motion for Summary Adjudication: December 3, 2026 at 8:30 a.m.
- Trial readiness conference: January 8, 2027, at 8:30 a.m.
- Trial: January 15, 2027, at 8:30 a.m.

Additionally, the Court on its own motion sets an OSC as to why it should not appoint a discovery referee in this matter. CCP § 639(a)(5). OSC set for July 17, 2026 at 8:30 a.m. Declarations pursuant to Local Rule 3116 shall be filed no later than July 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305019	RICARDO VS MILLER ENVIRONMENTAL, INC.	MOTION TO COMPEL: FURTHER ANSWERS/RESPONSES TO INTERROGATORIES

Tentative Ruling: The hearing is continued to August 11, 2026 at 8:30 a.m. Plaintiff shall meet and confer via in person, phone, or videoconferencing with Defendant for the purpose of determining whether an agreement can be reached that would informally resolve each issue raised in the motion. (C.C.P. § 2016.040(a); 2030.300(b)(1).) As part of the meet and confer process, Plaintiff shall identify the specific interrogatories that it believes are subject to the motion to compel further responses and identify with legal support the basis of the alleged deficiencies. Defendant shall provide legal support for its position that its responses are code-compliant or, in the alternative, confirm whether its responses will be supplemented.

At least 10 days before the continued hearing date, the parties shall file a joint declaration as to any remaining issues.

Meet and Confer Requirement

The parties are required to meet and confer prior to filing a motion to compel further responses to a request for production. (C.C.P. § 2030.300(b).) Effective January 1, 2026, the meet and confer must be conducted in person, by telephone, or by videoconference, and state facts showing a reasonable and good faith attempt to informally resolve each issue presented by the motion. (C.C.P. § 2016.040(a).)

The evidence shows the parties met and conferred telephonically on April 29, 2026. (Heraldez Decl., ¶ 7.) However, it is unclear whether the specific deficiencies for Interrogatories Nos. 45 through 61 were discussed. Rather, the evidence shows that Plaintiff's prior meet and confer letter generally addressed "boilerplate objections," and only specifically addressed Interrogatories Nos. 46 and 47. (Heraldez Decl., Exh. C, p. 2.) Accordingly, the evidence does not support that Plaintiff fully complied with the meet and confer requirements to "resolve each issue" set forth in the underlying motion, as required by C.C.P. § 2016.040(a).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2305291	STODDARD VS FCA US, LLC	MOTION TO TAX COSTS

Tentative Ruling: The Court taxes the \$19.49 claimed for "other" costs. Defendant has not provided proper documentation to support the costs for the claimed "other" cost.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306673	DAIMLER TRUCK FINANCIAL SERVICES USA LLC VS FAVILLO	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: The Court GRANTS Plaintiff Daimler Truck Financial Services' Motion for Attorneys' Fees. Plaintiff shall submit within fourteen days of this order a First Amended Judgment reflecting the award of \$32,320 in attorneys' fees and \$2134.40 in costs.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2501082	STRAIN VS ALVARADO RESTAURANT GROUP, LLC	MOTION TO COMPEL DEFENDANT ALVARADO RESTAURANT GROUP, LLC TO PRODUCE ALL DOCUMENTS RESPONSIVE TO PLAINTIFF'S REQUEST FOR PRODUCTION NOS. 1-16, 20, 23- 32, 34-40, 42, AND 46-49 IN ACCORDANCE WITH DEFENDANT'S STATEMENT OF COMPLIANCE

Tentative Ruling: The Court finds the Motion is MOOT.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2501082	STRAIN VS ALVARADO RESTAURANT GROUP, LLC	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES NOS. 4-7, 13-14, 17-18, 24, 28-29, 32-33 AND 36

Tentative Ruling: The Court finds the Motion is MOOT.